

26STCV17466 26STCV17466

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Case Number: 26STCV17466 Hearing Date: August 10, 2026 Dept: 408

1.

Defendants G4 Wellness GP LLC, Pine Grove

Healthcare & Wellness Centre, LP, and Rockport Administrative Services

LLC's Motion

to Compel Arbitration and Stay Proceedings is GRANTED.

2.

Plaintiff Owusu Ananeh-Firempong's Motion for

Trial Preference is DENIED as moot.

3.

I.

BACKGROUND

On June

2, 2026, Plaintiff Owusu Ananeh-Firempong ("Plaintiff") filed a complaint

against Defendants G4 Wellness GP LLC, Pine Grove Healthcare & Wellness

Centre, LP, and Rockport Administrative Services LLC ("Defendants") alleging

causes of action for:

1.

Elder Abuse; and

2.

Violations

of Health & Safety Code § 1430(b).

On June

10, 2026, Plaintiff filed this Motion for Trial Preference. On July 31, 2026, Defendants filed an opposition. On August 4, 2026, Plaintiff filed a reply.[1]

On July

9, 2026, Defendants filed this Motion to Compel Arbitration and Stay Proceedings. On July 24, 2026, Plaintiff filed an opposition. On August 3, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” (Code Civ. Proc., § 1281.2, subd. (a)-(b).)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761.) The burden then shifts to the opposing party to prove by a preponderance of the evidence a defense to enforcement (e.g., fraud, unconscionability, etc.). (*Ibid.*) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

“If a court of competent jurisdiction. . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.)

III.

DISCUSSION

Defendants seek to compel arbitration of Plaintiff's claims and stay all further judicial proceedings in this action pending completion of arbitration.

A.

Existence
of an Arbitration Agreement

Defendants contend that Plaintiff entered into an arbitration agreement on February 24, 2026, as part of Plaintiff's admissions process into Pine Grove Healthcare & Wellness Centre, a skilled nursing facility. (Motion, at p. 7; Yamawaki Decl., ¶¶ 13-16, Exhs. A-B.) Plaintiff electronically executed an Admissions Agreement and a standalone Arbitration Agreement through his attorney-in-fact, Nanafrema Ananeh-Firemong, pursuant to a valid Power of Attorney, via a program named OneSpan. (Ibid.) The arbitration agreement provides, in relevant part, as follows:

1.1 It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently or incompetently rendered, will be determined by submission to arbitration as provided by applicable law, and not by a lawsuit or resort to court process except as the FAA law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration. The type of award requested (e.g., treble damages, punitive damages or attorneys' fees) shall not affect whether a dispute is subject to arbitration by this Agreement.

[...]

2.1 It is further understood that that, except as set forth in paragraph 2.2, any and all other disputes, controversies, demands or claim between Resident, including Resident's heirs and/or agents, and Facility, and their owners, affiliates, managers, investors, operators, officers, directors, administrators, staff, employees, agents, consultants and any management or administrative services company and all

related entities and individuals, their staff, personnel, employees, owners, managers, officers, directors, members, affiliates, and agents that provide services to the Facility (collectively referred to herein as "Facility") that relates to or arise out of the provision of services or health care or any failure to provide services or health care by Facility, including without limitation any action for injury or death arising from negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430), alleged violations of the Elder Abuse and Dependent Adult Civil Protection Act, the Unfair Competition Law, the Consumer Legal Remedies Act, any right granted to Resident by law or by the admission agreement and/or all other statutory or common law claims under any applicable California Code or regulation, or federal statute or regulation, will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as the FAA provides for judicial review of arbitration proceedings.

(Yamawaki Decl., ¶ 16, Exh. B.)

The court finds that by providing a copy of the arbitration agreement evidencing Plaintiff's acceptance, Defendants met the initial burden in establishing the existence of an arbitration agreement. (Condee v. Longwood Mgmt. Corp., 2001 WL 88 Cal.App.4th 215, 218; Cal. Rules of Court, rule 3.1330.) The burden shifts to Plaintiff to challenge its validity. (Condee, supra, 88 Cal.App.4th at 219.)

In opposition, Plaintiff concedes that there is valid arbitration agreement but contends that Plaintiff lacks the funds to pay for arbitration. (Opp., at p. 2.) As such, Plaintiff requests that the court order Defendants to pay all arbitration costs and fees or waive the right to arbitration. (Ibid.)

In reply, Defendants agree to pay all arbitration fees required if Plaintiff provides competent evidence establishing Plaintiff's alleged indigency and inability to pay arbitration fees. (Reply, at p. 4.)

As the court has found that a valid arbitration agreement exists and there is no dispute that Plaintiff's claims fall within

the arbitration scope, the motion is granted. The court further orders that Defendants pay all costs in connection with arbitration. The declaration of Nanafrema Ananeh-Firempong, Plaintiff's daughter and attorney-in-fact, provides sufficient evidence of Plaintiff's inability to pay for arbitration. (Ananeh-Firempong Decl., ¶¶ 3-5.)

B.

Stay Request

If a party applies to a court "for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code of Civ. Proc., § 1281.4.)

Because the court has found that arbitration is warranted in this matter, the court also stays the proceedings during the pendency of the arbitration process.

IV.

CONCLUSION

1.

Defendants G4 Wellness GP LLC, Pine Grove Healthcare & Wellness Centre, LP, and Rockport Administrative Services LLC's Motion to Compel Arbitration and Stay Proceedings is GRANTED.

2.

Plaintiff Owusu Ananeh-Firempong's Motion for Trial Preference is DENIED as moot.

[1] Based

on the granting of Defendants' Motion to Compel Arbitration, the court denies Plaintiff's Motion for Trial Preference as moot.